

Tentative Rulings for August 26, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2501129	BABALOO LOUNGE PALM DESERT LLC VS H&H GENERAL CONTRACTING, INC.	DEMURRER ON COMPLAINT OF BABALOO LOUNGE PALM DESERT LLC AS TO CAUSE(S) OF ACTION; DEMURRER AS TO ENTIRE COMPLAINT AND 2ND CAUSE OF ACTION FOR NEGLIGENT HIRING AND 3RD CAUSE OF ACTION FOR NEGLIGENT SUPERVISION BY CITY OF PALM DESERT

Tentative Ruling: Sustained.

Plaintiff granted one additional opportunity for leave to amend in compliance with the limitations set in this order. Plaintiff has 10 days to file their 1st Amended Complaint. If Plaintiff does not file their 1st Amended Complaint within 10 days of this order becoming final, moving Defendant city is to file their proposed judgment within 20 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiffs Babaloo Lounge Palm Desert LLC and Gustavo Ungo allege that in July 2021, Defendant City hired Defendant H&H to conduct renovations to a parking lot at the President's Palace, which was the only viable source of parking for the merchants. Defendant H&H General Contracting, Inc. commenced work, rendering it unusable, and then ceased work for 8 months, leaving the parking lot closed to the public. The dust and dirt generated from the construction caused damage to Plaintiffs' air conditioning system, requiring a replacement. Defendant H&H also demolished and replaced portions of the sidewalk adjacent to Plaintiffs' property.

The operative complaint was filed 2/13/25, asserts: (1) negligence (against H&H); (2) negligent hiring (against City); and (3) negligent supervision (against City).

Defendant City demurs to the complaint on the grounds that it fails to state facts sufficient. Defendant asserts that there is no allegation of compliance with the Government Claims Act, and there are no statutory basis for liability. It argues that Plaintiff fails to plead the claims with particularity.

In opposition, Plaintiffs contend that Government Code section 815.4 applies to impose liability. They argue that they alleged that City hired H&H and knew that the parking lot was the primary source of parking, and failed to monitor the project. They argue the omission of the claims can be pled. They contend that inverse condemnation can also be pled. They assert that they have identified the bases for leave to amend.

In reply, Defendant argues Plaintiffs admit to not pleading compliance with the Act. It argues that there is no statutory basis of liability. They contend any amendment should be limited to cure the defects outlined in the demurrer rather than a broad leave to amend.

Demurrer

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

Government Claims Act

Under the Government Claims Act (the “Act”), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity (“government claim”) which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity’s actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or an exception or excuse for not compliance exists. (*Id.*) Failure to plead compliance with the claims statute subjects the complaint to a demurrer. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Here, there are no allegations of compliance.

Statutory Liability

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Govt. Code § 815(a).) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

Here, there is no statutory basis of liability.

Leave to Amend

As explained by one court:

Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order. [Citation.] The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.

(*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.) A new cause of action must directly respond to the court’s reason for sustaining an earlier demurrer.

(*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) “The granting of leave to amend after a demurrer is sustained on one ground does not give the plaintiff a license to add any possible cause of action that might not be subject to dismissal on that ground. Otherwise, there would be virtually no limitation on amendments following the sustaining of a demurrer.” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 [trial court granting leave to add quantum meruit did not allow plaintiff to add promissory estoppel to avoid statute of limitations].)

Here, leave to amend is limited to the reasons stated for sustaining the demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508997	ROBLES CALVILLO VS GENERAL MOTORS, LLC	HEARING RE: MOTION FOR ATTORNEYS FEES

Tentative Ruling: Granted.

Granted in reduced, but reasonable amount of \$17,292.00 payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Juvencio Robles Calvillo brings this Song-Beverly action regarding a 2023 Chevrolet Traverse that contained various defects. The complaint, filed 11/12/25, asserts: (1) breach of implied warranty of merchantability; (2) breach of implied warranty of fitness; (3) breach of express warranty; (4) failure to promptly repurchase product; and (5) failure to commence repairs within a reasonable time and to complete them within 30 days.

Plaintiff moves for attorney fees of and costs of \$28,852.40 (\$18,655 [lodestar]; \$9,327.50 [1.5 multiplier]; \$869.90 [costs]). Plaintiff contends that he is the prevailing party. Counsel spent 28.7 hours at a rate of \$650. Plaintiff contends a multiplier is warranted.

In opposition, Defendant contends this was a routine lemon law case. It argues that \$650 is not the prevailing market rate, rather than \$450. It asserts that Plaintiff improperly billed for clerical and administrative work, and that certain tasks are excessive. It contends that there is no basis for a multiplier. It requests the court award \$10,237.50 and \$719.90 in costs and expenses.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Here, the parties settled with the court to decide fees.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to Plaintiff's counsel, he spent 28.7 hours at an hourly rate of \$650. Based on counsel's declaration and this court's review of similar matters with similar work, a more reasonable rate is \$550.00 for Riverside County.

As for the time spent, Defendant requests the following challenges:

.5 hours reviewing initial disclosures. The court finds this reasonable.

2.5 hours reviewing documents for mediation. The court finds this reasonable.

5.0 hours preparing this fee motion. The court agrees this is excessive and awards 3.0 hours.

1.25 hours preparing the complaint. The court agrees this is excessive and awards .75 hours.

Thus, the court awards a total of 26.2 hours at \$550, for a lodestar of \$14,410.00.

The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly

rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.)

As this is a typical lemon law case, there is no basis for a multiplier. However, the court will exercise its discretion for a multiplier of 1.2 for an efficient resolution of the matter (\$2,882.00) for a total fee award of \$17,292.00.